IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.1
CP (CAA)/4/230/AMR/2024 in CA (CAA)/02/230/AMR/2024

IN THE MATTER OF:
M/s. Haragovind Enterprises Pvt. Ltd. (Transferor Company) and
M/s. Hyderabad Institute of Oncology Pvt. Ltd (Transferee Company) and
Shareholders & Creditors .... Petitioners

Under Section: 230 of Companies Act, 2013

Order delivered on 19.06.2025

CORAM:
SHRI UMESH KUMAR SHUKLA **SHRI KISHORE VEMULAPALLI**
HON'BLE MEMBER (TECHNICAL) **HON'BLE MEMBER (JUDICIAL)**

PRESENT:
For the Petitioners : Mr. V. Venkata Rami Reddy, Adv.
For the RD : Ms.Kusum Yadav, Assistant Director for RD (SER)
For the IT Dept. : Ms.Bokaro Sapna Reddy (Sr SC IT Dept)
For the OL : Authorised Representative of OL

ORDER

On 21.03.2025 hearing, this bench directed the petitioner to file the requisite affidavits required to be filed in a petition under Section 230 of the Companies Act, 2013 along with the list of pending litigations and the certificate of the Statutory Auditor of the company, regarding accounting treatment and also directed the RD (SER) to file a report within two weeks.

Today, the Counsel for the Petitioners submitted that a memo has been filed in compliance with the directions issued by this Tribunal vide order dated 21.03.2025. He further submitted that the reply to the Income Tax Department is ready and will be filed in due course. It was also submitted that the replies from the Registrar of Companies (RoC) and the Regional Director (RD) were received late last night, and therefore, he seeks two weeks' time to file a consolidated response to the said reports. Time as prayed for is granted. The Petitioners shall file their replies to the reports of the RoC, RD, and the Income Tax Department within two weeks. In the event any supplemental objections arise thereafter, the Petitioners shall comply with the same within one week from the date of receipt of such objections.

During the course of hearing, upon perusal of the report submitted by the Official Liquidator (OL) and the reply filed by the Petitioners thereto, this Bench posed a query to the Petitioners regarding the observation made by the OL concerning the "Appointed Date" and be ready with appropriate clarification on the next date of hearing. List the matter for hearing on 24.07.2025.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(KISHORE VEMULAPALLI)
MEMBER (JUDICIAL)